

EXHIBIT “1”

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
V.P., AN INFANT UNDER THE AGE OF 18 BY HER
MOTHER and NATURAL GUARDIAN ANNA
PECHNIKOVA, and ANNA PECHNIKOVA
INDIVIDUALLY

Index No.: 723264-2024
Date Purchased: 11/01/2024

AMENDED SUMMONS

Plaintiffs,

Plaintiff designates Queens
County as the place of trial.

--against--

POLICE OFFICER STEVEN M. LOPEZ (Shield # 594),
POLICE OFFICER RAWLE PERSAD (Shield # 19414),
POLICE OFFICER NICHOLAS DERLES (Shield # 22850),
SERGEANT LAWRENCE GRANSHAW (Shield # 1863),
THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, EMT CASEY JOHN DOE #3
AND JOHN DOE #4 (other FDNY EMT's who participated
in the matters stated below and who will be named as
Defendants in the lawsuit once their identities become known,
individually and in their official capacity as employees of THE
CITY OF NEW YORK, FIRE DEPARTMENT OF THE
CITY OF NEW YORK), JANE DOE # 5 AND JANE DOE #
6 (shelter employees who participated in the matters stated
below and who will be named as Defendants in the lawsuit
once their identities become known, individually and in their
official capacity as employees or contractors of THE CITY OF
NEW YORK), NEW YORK CITY DEPARTMENT OF
HOMELESS SERVICES, THE BEACH HOUSE SHELTER,
SUPERIOR BEACH 21ST LLC, and 1025 BEACH LLC,

The basis of venue is:
Place of Occurrence

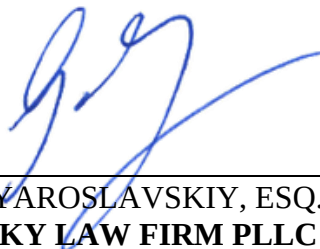
Defendants.

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.



Dated: New York, New York
February 27, 2025



YURIY YAROSLAVSKIY, ESQ.

LEVITSKY LAW FIRM PLLC

Attorneys for Plaintiffs

V.P., AN INFANT UNDER THE AGE
OF 18 BY HER MOTHER AND NATURAL
GUARDIAN ANNA PECHNIKOVA,
and ANNA PECHNIKOVA INDIVIDUALLY
314 East 34th Street Suite 3
New York, NY 10016
(347) 462-1660
Our File No.: DL01309

TO:

SUPERIOR BEACH 21ST LLC
238 Causeway,
Lawrence, NY 11559

SUPERIOR BEACH 21ST LLC
1021 Beach 21st Street,
Far Rockaway, NY 11691

1025 BEACH LLC
C/O Tejhpal Sandhu
137-30 Redding Street
Ozone Park, NY 11417

BEACH HOUSE SHELTER
1021 Beach 21st Street,
Far Rockaway, NY 11691



THE NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza Path
New York, NY 10007

PO STEVEN M. LOPEZ (Shield # 594)
101 PRECINCT NYPD
1612 MOTT AVE,
FAR ROCKAWAY, NY 11691

PO RAWLE PERSAD (Shield # 19414)
101 PRECINCT NYPD
1612 MOTT AVE,
FAR ROCKAWAY, NY 11691

PO NICHOLAS DERLES (Shield # 22850)
101 PRECINCT NYPD
1612 MOTT AVE
FAR ROCKAWAY, NY 11691

SGT LAWRENCE GRANSHAW (Shield # 1863)
101 PRECINCT NYPD
1612 MOTT AVE
FAR ROCKAWAY, NY 11691

FIRE DEPARTMENT OF THE CITY OF NEW YORK
9 Metrotech Center, Room 5E-6
Brooklyn, NY 11201

NEW YORK DEPARTMENT OF HOMELESS SERVICES
100 Church Street
New York, NY 10007

THE CITY OF NEW YORK (John Doe's #1-6)
100 Church Street
New York, NY 10007



SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
V.P., AN INFANT UNDER THE AGE OF 18 BY HER
MOTHER and NATURAL GUARDIAN ANNA
PECHNIKOVA, and ANNA PECHNIKOVA INDIVIDUALLY

Index No.: 723264-2024

Plaintiffs,

--against--

**AMENDED VERIFIED
COMPLAINT**

POLICE OFFICER STEVEN M. LOPEZ (Shield # 594), POLICE OFFICER RAWLE PERSAD (Shield # 19414), POLICE OFFICER NICHOLAS DERLES (Shield # 22850), SERGEANT LAWRENCE GRANSHAW (Shield # 1863), THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, EMT CASEY JOHN DOE #3 AND JOHN DOE #4 (other FDNY EMT's who participated in the matters stated below and who will be named as Defendants in the lawsuit once their identities become known, individually and in their official capacity as employees of THE CITY OF NEW YORK, FIRE DEPARTMENT OF THE CITY OF NEW YORK), JANE DOE # 5 AND JANE DOE # 6 (shelter employees who participated in the matters stated below and who will be named as Defendants in the lawsuit once their identities become known, individually and in their official capacity as employees or contractors of THE CITY OF NEW YORK), NEW YORK CITY DEPARTMENT OF HOMELESS SERVICES, THE BEACH HOUSE SHELTER, SUPERIOR BEACH 21ST LLC, and 1025 BEACH LLC,

Defendants.

-----X
Plaintiffs, by their attorneys, **LEVITSKY LAW FIRM PLLC**, complaining of the
Defendants, respectfully allege, upon information and belief, as follows:

1. That the cause of action alleged herein arose in the County of Queens, City and State of New York.
2. That this action falls within one or more of the exemptions set forth in CPLR §1602.



3. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** was and still is a domestic limited liability company duly organized and existing under and by virtue of the laws of the State of New York.

4. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

5. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** was and is a business entity duly licensed to transact business in the State of New York.

6. That on April 23, 2024, and at all times herein mentioned, Defendant **SUPERIOR BEACH 21ST LLC**, was registered to do business within the State of New York and operated its business under New York State, Department of State, Division of Corporations DOS ID: 4721723.

7. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** conducted business and maintained offices within the State of New York.

8. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** was and still is a business corporation, duly authorized to do business in the State of New York.

9. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** maintained its principal place of business within the State of New York.

10. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** owned the premises known as “THE BEACH HOUSE SHELTER”, located at 1025 Beach 21st Street 209, Far Rockaway, NY 11691 (hereinafter “premises”).



11. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** committed a tortious act within the State of New York.

12. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** committed a tortious act on the aforementioned premises.

13. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** regularly does, or solicits, business in the State of New York.

14. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **SUPERIOR BEACH 21ST LLC** received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

15. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** was and still is a domestic limited liability company duly organized and existing under and by virtue of the laws of the State of New York.

16. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

17. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** was and is a business entity duly licensed to transact business in the State of New York.

18. That on April 23, 2024, and at all times herein mentioned, Defendant **1025 BEACH LLC** was registered to do business within the State of New York and operated its business under New York State, Department of State, Division of Corporations DOS ID: 4872967.

19. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** conducted business and maintained offices within the State of New York.



20. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** was and still is a business corporation, duly authorized to do business in the State of New York.

21. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** maintained its principal place of business within the State of New York.

22. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** owned the premises known as “THE BEACH HOUSE SHELTER”, located at 1025 Beach 21st Street 209, Far Rockaway, NY 11691 (hereinafter “premises”).

23. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** committed a tortious act within the State of New York.

24. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** committed a tortious act on the aforementioned premises.

25. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **1025 BEACH LLC** regularly does, or solicits, business in the State of New York.

26. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

27. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** was and still is a domestic limited liability company duly organized and existing under and by virtue of the laws of the State of New York.



28. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

29. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** was and is a business entity duly licensed to transact business in the State of New York.

30. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** conducted business and maintained offices within the State of New York.

31. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** was and still is a business corporation, duly authorized to do business in the State of New York.

32. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** maintained its principal place of business within the State of New York.

33. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** owned the premises known as “THE BEACH HOUSE SHELTER”, located at 1025 Beach 21st Street 209, Far Rockaway, NY 11691 (hereinafter “premises”).

34. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** committed a tortious act within the State of New York.

35. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** committed a tortious act on the aforementioned premises.



36. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** regularly does, or solicits, business in the State of New York.

37. That on April 23, 2024, and at all times hereinafter mentioned, Defendant **THE BEACH HOUSE SHELTER** received substantial revenue from goods used or consumed, or services rendered, in the State of New York.

38. That at all times herein mentioned, Defendant **THE CITY OF NEW YORK** (“**CITY**”) was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.

39. That at all relevant times herein mentioned, Defendant **NEW YORK CITY POLICE DEPARTMENT** (“**NYPD**”) was a wholly owned subsidiary which was further wholly operated, managed, maintained, and controlled by Defendant **CITY**.

40. That at all relevant times herein mentioned, Defendant **CITY**, acting through **NYPD** was responsible for the policy, practice, supervision, implementation, and conduct of all **NYPD** matters and was responsible for the appointment, training, supervision, discipline, retention, and conduct of all **NYPD** personnel, including correction officers, detectives and supervisory officers as well as the individually named Defendants herein.

41. That at all times herein mentioned, Defendant **CITY**, acting through its **NYPD** was responsible for the policy, practice, supervision, implementation, and conduct of all **NYPD** matters and was responsible for the appointment, training, supervision, discipline, retention and conduct of all **NYPD** personnel, including correction officers, detectives and supervisory officers as well as the individually named Defendants herein.



42. That at all times herein mentioned, Defendant **CITY** was responsible for enforcing the rules of the **NYPD** personnel obey the laws of the United States and the State of New York.

43. That at all times herein mentioned, Defendants **POLICE OFFICER STEVEN M. LOPEZ (Shield # 594)**, **POLICE OFFICER RAWLE PERSAD (Shield # 19414)**, **POLICE OFFICER NICHOLAS DERLES (Shield # 22850)**, **SERGEANT LAWRENCE GRANSHAW (Shield # 1863)** were, at all times relevant herein, police officers, detectives, sergeants lieutenants or other supervisory officers employed by the **NYPD**, and, as such were acting in the capacities of agents, servants and employees of the **CITY**, Defendants were, at all times relevant herein, believed to be assigned to the 101st Precinct. Defendants **POLICE OFFICER STEVEN M. LOPEZ (Shield # 594)**, **POLICE OFFICER RAWLE PERSAD (Shield # 19414)**, **POLICE OFFICER NICHOLAS DERLES (Shield # 22850)**, **SERGEANT LAWRENCE GRANSHAW (Shield # 1863)** are being sued in their official and individual capacities.

44. That on April 23, 2024, and at all times hereinafter mentioned, and upon information and belief, Defendant **THE CITY OF NEW YORK** employed **POLICE OFFICER STEVEN M. LOPEZ (Shield # 594)**.

45. That on April 23, 2024, and at all times hereinafter mentioned, and upon information and belief, Defendant **THE CITY OF NEW YORK** employed **POLICE OFFICER RAWLE PERSAD (Shield # 19414)**.

46. That on April 23, 2024, and at all times hereinafter mentioned, and upon information and belief, Defendant **THE CITY OF NEW YORK** employed **POLICE OFFICER NICHOLAS DERLES (Shield # 22850)**.



47. That on April 23, 2024, and at all times hereinafter mentioned, and upon information and belief, Defendant **THE CITY OF NEW YORK** employed **SERGEANT LAWRENCE GRANSHAW (Shield # 1863)**.

48. That at all relevant times herein mentioned, Defendant **FIRE DEPARTMENT OF THE CITY OF NEW YORK (“FDNY”)** was a wholly owned subsidiary which was further wholly operated, managed, maintained, and controlled by Defendant **CITY**.

49. That at all relevant times herein mentioned, Defendant **CITY**, acting through **FDNY** was responsible for the policy, practice, supervision, implementation, and conduct of all **FDNY** matters and was responsible for the appointment, training, supervision, discipline, retention, and conduct of all **FDNY** personnel, including EMT personnel as well as the individually named Defendants herein.

50. That at all times herein mentioned, Defendant **CITY** was responsible for enforcing the rules of the **FDNY** personnel obey the laws of the United States and the State of New York.

51. That at all times herein mentioned, Defendants **EMT CASEY, JOHN DOE #3 AND JOHN DOE #4** (other **FDNY EMT’s** who participated in the matters stated below and who will be named as Defendants in the lawsuit once their identities become known, individually and in their official capacity as employees of **THE CITY OF NEW YORK, FIRE DEPARTMENT OF THE CITY OF NEW YORK**) were at all times relevant herein, EMT personnel employed by the **NYPD**, and, as such were acting in the capacities of agents, servants and employees of the **CITY**. Defendants **EMT CASEY, JOHN DOE #3 AND JOHN DOE #4** (other **FDNY EMT’s** who participated in the matters stated below and who will be named as Defendants in the lawsuit



once their identities become known, individually and in their official capacity as employees of the **CITY, FDNY**) are being sued in their official and individual capacities.

52. That on April 23, 2024, and at all times herein mentioned, and upon information and belief, Defendant **THE CITY OF NEW YORK** employed **EMT CASEY, JOHN DOE #3 AND JOHN DOE #4** (other **FDNY EMT's** who participated in the matters stated below and who will be named as Defendants in the lawsuit once their identities become known), as yet unidentified, as agents, servants and/or employees of the **FDNY** and **CITY**.

53. That prior hereto on July 22, 2024, a sworn Notice of Claim was submitted stating, among other things, the time when and place where the injuries and damages were sustained, together with Plaintiff's demands for adjustment or payment thereof, and that thereafter Comptroller for **THE CITY OF NEW YORK** refused or neglected for more than **(30)** days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

54. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

55. That at no point in time, Defendant **THE CITY OF NEW YORK** ever requested the Plaintiffs to submit to a 50-H hearing.

56. That pursuant to the General Municipal Law, the Statutory 50-H hearing of Plaintiffs was not held.

57. That on April 23, 2024, and at all times herein mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** was and still is a mayoral agency within **THE CITY OF NEW YORK**.



58. That on April 23, 2024, and at all times herein mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** was and is a business entity duly organized and existing under and by virtue of the laws of the State of New York.

59. That on April 23, 2024, and at all times herein mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** was and is a corporation and/or business entity duly licensed to transact business in the State of New York.

60. That on April 23, 2024, and at all times herein mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** conducted business and maintained offices within the State of New York.

61. That on April 23, 2024, and at all times herein mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES**, was and still is a business corporation, duly authorized to do business in the State of New York.

62. That on April 23, 2024, and at all times herein mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** committed a tortious act within the State of New York.

63. That on April 23, 2024, and at all times herein mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES**, regularly does, or solicits, business in the State of New York.

64. That on April 23, 2024, and at all times herein mentioned, Defendant **NEW YORK DEPARTMENT OF HOMELESS SERVICES** received substantial revenue from goods used or consumed, or services rendered, in the State of New York.



65. Defendants **SUPERIOR BEACH 21ST LLC, 1025 BEACH LLC, THE BEACH HOUSE SHELTER** or premises known as “THE BEACH HOUSE SHELTER”, located at 1025 Beach 21st Street 209, Far Rockaway, NY 11691, where the incident occurred, operated and still operates under the umbrella of the **NEW YORK DEPARTMENT OF HOMELESS SERVICES**, in which it authorized, permitted and ratified the unlawful, intentional, and negligent acts of their agents, servants and/or employees, herein-above mentioned.

66. That on April 23, 2024, and at all times herein mentioned, a contract existed, and still exists, as between Defendant **SUPERIOR BEACH 21ST LLC**, and the Defendant **CITY**.

67. That on April 23, 2024, and at all times herein mentioned, a contract existed, and still exists, as between Defendant **1025 BEACH LLC**, and the Defendant **CITY**.

68. That on April 23, 2024, and at all times herein mentioned, a contract existed, and still exists, as between Defendant **THE BEACH HOUSE SHELTER**, and the Defendant **CITY**.

69. That at all times herein mentioned, Defendants **JANE DOE # 5 AND JANE DOE # 6** (shelter employees who participated in the matters stated below and who will be named as Defendants in the lawsuit once their identities become known, individually and in their official capacity as employees or contractors of **THE CITY OF NEW YORK**) were at all times relevant herein mentioned, employees or contractors of **THE CITY OF NEW YORK** are being sued in their official and individual capacities.

70. That on April 23, 2024, and at all times herein mentioned, and upon information and belief, Defendant **THE CITY OF NEW YORK** employed or contracted Defendants **JANE DOE # 5 AND JANE DOE # 6** (shelter employees who participated in the matters stated below and



who will be named as Defendants in the lawsuit once their identities become known), as yet unidentified, as agents, servants and/or employees.

AS FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY ON BEHALF
OF INFANT-PLAINTIFF V.P.

71. The Plaintiff repeats, reiterates and re-alleges each and every allegation contained in this Complaint numbered “1” through “69” with the same force and effect.

72. That on April 23, 2024, and at all times hereinafter mentioned, Plaintiff, **INFANT-PLAINTIFF V.P.** was lawfully present in “**THE BEACH HOUSE SHELTER**”, located at or near 1025 Beach 21st Street 209, Far Rockaway, NY 11691 (hereinafter “premises”).

73. **INFANT-PLAINTIFF V.P. AND ANNA PECHNIKOVA** were lawful residents at the above-mentioned location, when they were intentionally and recklessly confined (against their will), falsely imprisoned, assaulted, battered, ridiculed, and then negligently / carelessly injured while being strapped by the individuals believed to be employees / or acted on behalf of **THE CITY OF NEW YORK**.

74. That on April 23, 2024, and at all times hereinafter mentioned, and upon information and belief, at the aforementioned location, **INFANT-PLAINTIFF V.P.**, while at the aforesaid premises, was assaulted and severely battered by Defendants **POLICE OFFICER STEVEN M. LOPEZ (Shield # 594), POLICE OFFICER RAWLE PERSAD (Shield # 19414), POLICE OFFICER NICHOLAS DERLES (Shield # 22850), SERGEANT LAWRENCE GRANSHAW (Shield # 1863)** assigned to the 101st Precinct, while acting as police officers, detectives, sergeants lieutenants or other supervisory officers employed by the **NYPD**, and, as such were acting in the capacities of agents, servants and employees of the **CITY**.



75. That on April 23, 2024, and at all times hereinafter mentioned, and upon information and belief, Defendants **POLICE OFFICER STEVEN M. LOPEZ (Shield # 594), POLICE OFFICER RAWLE PERSAD (Shield # 19414), POLICE OFFICER NICHOLAS DERLES (Shield # 22850), SERGEANT LAWRENCE GRANSHAW (Shield # 1863)** assigned to the 101st Precinct, were acting within the scope of their employment at the time they assaulted and battered **INFANT-PLAINTIFF V.P.**

76. That on April 23, 2024, at all times hereinafter mentioned, and upon information and belief, the assault and battery committed by Defendants **POLICE OFFICER STEVEN M. LOPEZ (Shield # 594), POLICE OFFICER RAWLE PERSAD (Shield # 19414), POLICE OFFICER NICHOLAS DERLES (Shield # 22850), SERGEANT LAWRENCE GRANSHAW (Shield # 1863)** assigned to 101st Precinct, was committed while acting in furtherance of the employment with Defendants **NYPD** and the **CITY**.

77. That on April 23, 2024, the Defendants **POLICE OFFICER STEVEN M. LOPEZ (Shield # 594), POLICE OFFICER RAWLE PERSAD (Shield # 19414), POLICE OFFICER NICHOLAS DERLES (Shield # 22850), SERGEANT LAWRENCE GRANSHAW (Shield # 1863)** assigned to the 101st Precinct, while acting within the scope of employment for **NYPD** and the **CITY**, intended for **INFANT-PLAINTIFF V.P.** to be subjected to imminent harmful or offensive contact.

78. That on April 23, 2024, and at all times hereinafter mentioned and upon information and belief, **INFANT-PLAINTIFF V.P.**, was assaulted and battered by Defendants **POLICE OFFICER STEVEN M. LOPEZ (Shield # 594), POLICE OFFICER RAWLE PERSAD (Shield # 19414), POLICE OFFICER NICHOLAS DERLES (Shield # 22850), SERGEANT**



LAWRENCE GRANSHAW (Shield # 1863) assigned to the 101st Precinct, who were acting within the scope of their employment with Defendants **NYPD** and the **CITY**, at the aforesaid premises.

79. That on April 23, 2024, and at all times hereinafter mentioned, and upon information and belief, at the aforementioned location, **INFANT-PLAINTIFF V.P.**, while at the aforesaid premises, was assaulted and severely battered by Defendants **EMT CASEY, JOHN DOE #3 AND JOHN DOE #4** (other **FDNY EMT's** who participated in the matters stated below and who will be named as Defendants in the lawsuit once their identities become known), while acting as an EMT personnel employed by the **FDNY**, and, as such were acting in the capacities of agents, servants and employees of the **CITY**.

80. That on April 23, 2024, and at all times hereinafter mentioned, and upon information and belief, Defendants **EMT CASEY, JOHN DOE #3 AND JOHN DOE #4** (other **FDNY EMT's** who participated in the matters stated below and who will be named as Defendants in the lawsuit once their identities become known) assigned to the 101st Precinct, were acting within the scope of their employment at the time they assaulted and battered **INFANT-PLAINTIFF V.P.**

81. That on April 23, 2024, at all times hereinafter mentioned, and upon information and belief, the assault and battery committed by Defendants **EMT CASEY, JOHN DOE #3 AND JOHN DOE #4** (other **FDNY EMT's** who participated in the matters stated below and who will be named as Defendants in the lawsuit once their identities become known), was committed while acting in furtherance of the employment with Defendants **FDNY** and the **CITY**.

82. That on April 23, 2024, the Defendants **EMT CASEY, JOHN DOE #3 AND JOHN DOE #4** (other **FDNY EMT's** who participated in the matters stated below and who will be named



as Defendants in the lawsuit once their identities become known), while acting within the scope of employment for **FDNY** and the **CITY**), intended for **INFANT-PLAINTIFF V.P.** to be subjected to imminent harmful or offensive contact.

83. That Defendants **NEW YORK CITY POLICE DEPARTMENT** and **THE CITY OF NEW YORK** are vicariously liable for the tortious acts of its employees.

84. That on April 23, 2024, and at all times hereinafter mentioned, and upon information and belief, the aforementioned assault and battery was performed, knowingly, intentionally and willfully.

85. That Defendants violated the Civil Rights of **INFANT-PLAINTIFF V.P.** including those under the New York City's Human Rights Law (§ 14 -151 of the Administrative Code of the City of New York, First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments of the U.S. Constitution, as well as the rights, privileges and immunities secured under the 42 U.S.C. Sec. 1983, the equal protection clause of the U.S. Constitution and the Constitution of the State of New York along with all other applicable state and federal laws, statutes and regulations.

86. That Defendants engaged in a gross deviation from acceptable conduct and other conduct undertaken in bad faith.

87. That Defendants subjected **INFANT-PLAINTIFF V.P.** to excessive force or failed to intervene when they observed others subjecting **INFANT-PLAINTIFF V.P.** to excessive force.

88. That the above-mentioned occurrence, and the results thereof were caused by the negligent, careless, reckless and intentional misconduct of Defendant the **CITY**, its agents, servants, employees and those acting under its direction, behest, permission and control in process of providing police services, more specifically **POLICE OFFICER STEVEN M. LOPEZ**



(Shield # 594), POLICE OFFICER RAWLE PERSAD (Shield # 19414), POLICE OFFICER NICHOLAS DERLES (Shield # 22850), SERGEANT LAWRENCE GRANSHAW (Shield # 1863) assigned to the 101st Precinct, individually and in their official capacity as New York City Police Officers.

89. That the above-mentioned occurrence, and the results thereof were caused by the negligent, careless, reckless and intentional misconduct of Defendant the **CITY**, its agents, servants, employees and those acting under its direction, behest, permission and control in process of providing EMT services, more specifically **EMT CASEY, JOHN DOE #3 AND JOHN DOE #4** (other **FDNY EMT's** who participated in the matters stated below and who will be named as Defendants in the lawsuit once their identities become known), while acting within the scope of employment for **FDNY** and the **CITY**), individually and in capacities of agents, servants and employees of the **CITY**.

90. That the above-mentioned occurrence, and the results thereof were caused by the misconduct of Defendants, its agents, servants and/or employees in the course of their duties; in failing to adequately supervise and instruct said arresting police officers and EMT personnel as to proper practices and procedures in the discharge of his/her /their duties; in violating **INFANT-PLAINTIFF V.P.'s** civil rights; in having negligent hiring practices; in failing to properly screen employees and potential employees; in failing to properly investigate employees and potential employees; and Defendant the **CITY**, its agents, servants, and/or employees were otherwise careless, reckless and negligent.

91. That by reason of the foregoing, **INFANT-PLAINTIFF V.P.** sustained civil rights violations, including those under the New York City's Human Rights Law (14-151 of the



Administrative Code of the City of New York, First, Fourth, Fifth, Sixth, Eight and Fourteenth Amendments of the U.S. Constitution, as well as, the rights, privileges and immunities secured under the 42 U.S.C Sec. 1983, the equal protection clause of the U.S. Constitution.

92. In addition, it is hereby alleged that the above damages stem from the negligent, careless, reckless and potentially intentional misconduct of **THE CITY**, its agents, servants, employees and those acting under its direction, behest, permission and control in process of providing police services, more specifically John Doe's 1 to 6 individually and in their private and/or official capacity who exhibited a complete and deliberate indifference and cruelty towards the **INFANT-PLAINTIFF V.P.** who was / is suffering from an Autism Spectrum Disorder.

93. As such, **INFANT-PLAINTIFF V.P.** does fall within the protected class.

94. It is further alleged that their deliberate indifference to serious human and medical needs of **INFANT-PLAINTIFF V.P** while placed in police and EMS custody constitutes the "unnecessary and wanton infliction of pain, proscribed by the Eighth Amendment, wherein **INFANT-PLAINTIFF V.P** was unnecessarily and wantonly inflicted pain and severe bodily injuries in violation of the concepts of dignity, civilized standards of humanity and decency. And that Respondents took actions described herein in part due to **INFANT-PLAINTIFF V.P** disability, wherein such disability was a significant factor in the Respondents decision to use and apply excessive force with respect to the **INFANT-PLAINTIFF V.P** and then **ANNA PECHNIKOVA**.

95. **INFANT-PLAINTIFF V.P.** and **ANNA PECHNIKOVA** sustained severe and permanent physical, emotional and psychological injuries, as well as monetary damages; the full extent of which is unknown. Upon information and belief, during the time in police custody,



INFANT-PLAINTIFF V.P. BY HER MOTHER and ANNA PECHNIKOVA INDIVIDUALLY were caused to feel helpless, disgraced, humiliated, traumatized, intimidated, harassed, shamed and ridiculed. She was subjected to excessive force way beyond the officers' qualified immunity. Additionally, **INFANT-PLAINTIFF V.P. and ANNA PECHNIKOVA** were caused to suffer / will suffer costs associated with present and future medical treatment for the injuries they sustained while in custody. Plaintiffs sustained personal injuries, hospital, physician and other medical expenses, pain and suffering, loss of quality and/or enjoyment of life, violation of civil rights, and all other damages to which **INFANT-PLAINTIFF V.P. BY HER MOTHER and ANNA PECHNIKOVA INDIVIDUALLY** are entitled by case law and statute.

96. By reason of said assault and battery the **INFANT-PLAINTIFF V.P.** was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

97. Said occurrences and the injuries sustained by Plaintiffs herein were due to the misconduct of the Respondents herein – jointly and severally – as well as its agents, servants and/or employees in the course of their duty(ies) as police / correction officers; in failing to adequately supervise and instruct said officer(s) as to the proper practices and procedures in the discharge of his/her/their duty(ies); in violating Plaintiffs' civil rights and subjecting them to inhumane treatment which led to a severe injury; in having negligent hiring and retention practices; in failing to properly screen employees and/or potential employees; in failing to properly investigate employees and/or potential employees; and **THE CITY OF NEW YORK**, its agents, servants, and/or employees were otherwise careless, reckless and negligent.

98. Plaintiffs sustained aforementioned injuries as a direct consequence of Defendants'



actions.

99. By reason of the foregoing, Plaintiff **INFANT-PLAINTIFF V.P.**, sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

**AS FOR A SECOND CAUSE OF ACTION FOR ASSAULT AND BATTERY ON
BEHALF OF THE PLAINTIFF, ANNA PECHNIKOVA**

100. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in this Complaint number “1” through “98” with full force and effect.

101. That Defendants violated the Civil Rights of **ANNA PECHNIKOVA** including those under the New York City's Human Rights Law (§ 14 -151 of the Administrative Code of the City of New York, First, Fourth, Fifth, Sixth, Eighth and Fourteenth Amendments of the U.S. Constitution, as well as the rights, privileges and immunities secured under the 42 U.S.C. Sec. 1983, the equal protection clause of the U.S. Constitution and the Constitution of the State of New York along with all other applicable state and federal laws, statutes and regulations.

102. As a result of said negligence, Plaintiff **ANNA PECHNIKOVA**, was caused to sustain serious injuries and to have suffered pain, shock, mental anguish; that these injuries and their effects will be permanent; and as a result of said injuries Plaintiff has been caused to incur, and will continue to be, rendered unable to perform her normal activities and duties and has sustained a resultant loss therefrom.

103. Defendants caused Plaintiff's fear for her physical well-being and safety and placed her in apprehension of immediate harmful or offensive touching.

104. Defendants engaged in and subjected Plaintiff to immediate harmful or offensive touching and battered her without his consent or other legal justification, therefore.



105. Defendant **THE CITY OF NEW YORK**, as employer of the individual Defendants is responsible for their wrongdoing under the doctrine of Respondeat Superior.

106. That as a direct and proximate result of this breach, Plaintiff sustained the damages hereinbefore alleged.

107. The Defendants and/or their agents, servants, and/or employees, were careless and negligent in committing the tortious acts of assault and battery, false imprisonment, and intentionally inflicting emotional distress upon the Plaintiff.

108. That as a result of the Defendants' negligence, Plaintiff sustained damages in an amount exceeding the jurisdictional limits of all lower Courts.

AS FOR A THIRD CAUSE OF ACTION

Unlawful Search & Seizure Under New York State and Common Law

109. The above paragraphs are here incorporated by reference as though fully set forth herein.

110. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

111. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures to their persons and property.

112. Plaintiffs did not consent to the unreasonable searches and seizures to their persons and property.

113. The unreasonable searches and seizures to Plaintiff's persons and property were not otherwise privileged.



114. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to Article I, Section 12, of the New York State Constitution and Article II, Section 8, of the New York Civil Rights Law.

115. Defendant **THE CITY OF NEW YORK**, as employer of the individual Defendants, is responsible for their wrongdoings under the doctrine of Respondent superior. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

AS FOR A FOURTH CAUSE OF ACTION

Unlawful Search & Seizure Under

42 U.S.C. § 1983 Against Individual NYPD Defendants

116. The above paragraphs are here incorporated by reference as though fully set forth herein.

117. Defendants subjected Plaintiffs and their property to unreasonable searches and seizures without a valid warrant and without reasonable suspicion or probable cause do so.

118. Plaintiffs were conscious and fully aware of the unreasonable searches and seizures of their persons and property.

119. Plaintiffs did not consent to the unreasonable searches and seizures of their persons and property.

120. The unreasonable searches and seizures of Plaintiff's persons and property were not otherwise privileged.

121. Accordingly, Defendants violated Plaintiffs' right to be free from unreasonable searches and seizures, pursuant to the Fourth Amendment to the United States Constitution.



122. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

AS FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF,

ANNA PECHNIKOVA

False Arrest & False Imprisonment Under New York State and Common Law

123. The above paragraphs are here incorporated by reference as though fully set forth herein.

124. Defendants subjected Plaintiff **ANNA PECHNIKOVA** to false arrest, false imprisonment, and deprivation of liberty without a valid warrant or probable cause.

125. Plaintiff was conscious of her confinement.

126. Plaintiff did not consent to her confinement.

127. Plaintiff's arrest and false imprisonment were not otherwise privileged.

128. Defendant **THE CITY OF NEW YORK**, as employer of individual Defendants, is responsible for their wrongdoings under the doctrine of Respondeat Superior.

129. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages herein before alleged.

AS FOR A SIXTH CAUSE OF ACTION FOR THE PLAINTIFF, ANNA PECHNIKOVA

False Arrest & False Imprisonment Under 42 U.S.C. § 1983 Against Individual

NYPD Defendants

130. The above paragraphs are here incorporated by reference as though fully set forth herein.



131. At all relevant times, Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiff **ANNA PECHNIKOVA**.

132. At all relevant times-in a separate but relevant episode that occurred on the same date - Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiff **ANNA PECHNIKOVA**. **THE POLICE OFFICER RAWLE PERSAD (Shield # 19414)** applied unreasonable and excessive force against thereby seizing her freedom and placing her under false arrest.

133. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiff was carried out without a valid warrant, without Plaintiff's consent, and without probable cause or reasonable suspicion.

134. As a direct and proximate result of this breach, Plaintiff **ANNA PECHNIKOVA** sustained the damages hereinbefore alleged.

AS FOR A SEVENTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress Under New York State and Common Law

135. The conduct of Defendants was extreme and outrageous.

136. Defendants' extreme and outrageous conduct was perpetrated with the intent to cause, or with disregard to a substantial probability of causing, severe emotional distress to Plaintiffs.

137. Defendants' extreme and outrageous conduct is causally related to Plaintiffs' injuries.

138. Defendants' extreme and outrageous conduct caused Plaintiffs to sustain extreme emotional distress.



139. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

AS FOR AN EIGHTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress Under New York State and Common Law

140. As evident by the videos footage from the scene of the alleged occurrence, the conduct and depraved indifference for the Plaintiffs' civil right and wellbeing on the part of Defendants was beyond extreme and outrageous.

141. Defendants owed Plaintiffs a duty of care and breached it thereby unreasonably endangering the Plaintiffs' physical / mental safety and welfare.

142. Defendants' extreme and outrageous conduct was perpetrated with the negligence that directly and proximately caused severe emotional distress to Plaintiffs.

143. Defendants' extreme and outrageous conduct caused Plaintiffs to sustain extreme emotional distress.

144. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

AS FOR A NINTH CAUSE OF ACTION

Excessive Force Under 42 U.S.C. § 1983 Against Individual NYPD Defendants

145. The above paragraphs are here incorporated by reference as though fully set forth herein.

146. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiffs' consent.



147. Defendants engaged in and subjected Plaintiffs to immediate harmful or offensive touching and battered them without his consent.

148. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

AS FOR A TENTH CAUSE OF ACTION

Failure to Intervene Under New York State and Common Law

149. The above paragraphs are hereby incorporated by reference as though fully set forth herein.

150. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.

151. Defendant **THE CITY OF NEW YORK**, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of Respondent Superior.

152. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

AS FOR AN ELEVENTH CAUSE OF ACTION

Failure to Intervene Under 42 U.S.C. § 1983 Against Individual NYPD Defendants

153. The above paragraphs are here incorporated by reference as though fully set forth herein.

154. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct, and failed to intervene.



155. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

156. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

AS FOR A TWELFTH CAUSE OF ACTION

Negligent Hiring, Training, Retention & Supervision Under New York State Law

157. The above paragraphs are hereby incorporated by reference as though fully set forth.

158. Defendant **CITY** owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.

159. Defendant **CITY** breached those duties of care.

160. Defendant **CITY** placed the individually named Defendants herein in a position where they could inflict foreseeable harm.

161. Defendant **CITY** knew or should have known of the individual named Defendants' propensities for violating the individual civil rights of those they interacted with prior to the injuries incurred by Plaintiffs.

162. Defendant **CITY** failed to take reasonable measures in hiring, training, retaining or supervising the individually named defendants, which would have prevented or mitigated the aforesaid injuries suffered by Plaintiffs.

163. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

AS FOR A THIRTEENTH CAUSE OF ACTION

Municipal " Monell" Liability Under 42 U.S.C. § 1983 Against Defendant City



164. The above paragraphs are here incorporated by reference as though fully set forth.

165. This would include any legal pattern and practice of mishandling emotionally disturbed individuals such as Plaintiffs herein, including, but not limited to other types of disabilities or disorders.

166. Defendant **CITY** maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as Plaintiffs, to such violative behavior.

167. Defendant **CITY** 's employees have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

168. Defendant **CITY**, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City's deliberate indifference toward the rights of those who may come into contact with Defendant City's employees.

169. Defendant **CITY** 's employees engaged in such egregious and flagrant violations of Plaintiffs' Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by Defendant City and its policymakers toward the rights of individuals, who may come into contact with Defendant City's employees.

170. Defendant **CITY** 's repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

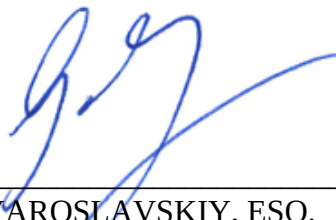


171. Defendant **CITY** 's conduct caused Plaintiffs to be deprived of their civil rights, as guaranteed by the Constitution of the United States, via the First, Fourth, Fifth, Sixth & Fourteenth Amendments thereto.

172. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs demand judgment against the Defendants herein, in a sum that exceeds the jurisdiction of all other courts lower than the Supreme Court of the State of New York together with the costs and disbursements and interests of this action.

Dated: New York, New York
February 27, 2025



YURIY YAROSLAVSKIY, ESQ.
LEVITSKY LAW FIRM PLLC
Attorneys for Plaintiffs
V.P., AN INFANT UNDER THE AGE
OF 18 BY HER MOTHER AND NATURAL
GUARDIAN ANNA PECHNIKOVA,
and ANNA PECHNIKOVA INDIVIDUALLY
314 East 34th Street Suite 3
New York, New York 10016
(347) 462-1660
Our File No.: DL01309

